

IN THE
United States District Court of Appeals for the Tenth Circuit

SANCTUARY FIELD NEIGHBORHOOD NETWORK;
MIRANDA SPINDEL; MICHAEL WEMPLE; WESTSIDE WATCH;
INTEGRITY MATTERS; and DANIELS WELCHESTER
NEIGHBORHOOD ASSOCIATION.

Plaintiffs-Appellants

PHILIP J. WEISER, Attorney General of Colorado; JARED S.
POLIS, Governor of Colorado; THE CITY OF COLORADO SPRINGS

Defendants-Appellees

On Appeal from the U.S. District Court of Colorado,
No. 1:24-cv-01847-SKC-NRN

Hon. Judge Kato Crews

PLAINTIFF/APPELLANTS' REVISED OPENING BRIEF

Oral Argument Requested

Morgan C. Smith, Attorney at Law
Morgan C. Smith Law Firm
3130 Last Dollar Rd.
Telluride, CO 81435
970-239-1470
morgan@morgancsmithlaw.com

Katherine J. Gayle, Attorney at Law
13790 Voyager Parkway
Colorado Springs, CO 80921
970-278-6884
trout_65@yahoo.com

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PRIOR RELATED APPEALS

There are no prior related appeals to this case.

I. SUMMARY

The right of citizens to challenge their government’s actions is a fundamental First Amendment right to petition the government for redress of grievances. See U.S. Const. amend. I. When a state enacts a law that infringes this right, courts apply strict scrutiny review that Justice Marshall observed as “strict in theory and fatal in fact.” *City of Richmond v. J.A. Croson Co.*, 488 U.S. 469, 552 (1989) (Marshall, J. concurring in part and dissenting in part).

When a law “chooses sides” through content-based discrimination to promote a particular governmental objective, it is presumptively invalid. *Reed v. Town of Gilbert*, 576 U.S. 155, 163 (2015). The statute challenged here, HB24-1107, codified at Colo. Rev. Stat. §13-51.5-104 (the “Fee Law”), *mandates* that a state court award attorney’s fees to local governmental entities when plaintiffs unsuccessfully challenge the grant of residential development rights—but not when a developer

challenges the denial of such rights.¹ The Fee Law thus “chooses sides” by insulating unsuccessful developers from fee liability while penalizing unsuccessful challengers. Its stated purpose is to “dissuade Rule 106 appeals” challenging the approval of development rights. App. Vol. II at 370. This Court has already recognized that filing a reasonably based but unsuccessful Colo. R. Civ. P. 106(a) challenge to a governmental decision is protected petitioning activity under the First Amendment. *CSMN Invs. v. Cordillera Metro. Dist.* 956 F.3d 1276 (10th Cir. 2020).

Colorado law already punishes frivolous lawsuits of all kinds, so the Fee Law only targets non-frivolous cases with a mandatory award of attorney fees. Col. Rev. Stat. §13-17-102.

The way the Fee Law suppresses protected activity is not through sporadic enforcement, but through its ongoing chilling effect: the credible threat of a large fee award discourages citizens from engaging in constitutionally protected petitioning from the start. That chilling effect is the statute’s main function. The fear of potentially devastating

¹ Colo. Rev. Stat. §13-51.5-104 is not limited to any level of affordability and applies equally to both affordable and luxury residential developments.

financial consequences is enough to prevent most citizens from filing such actions, even when their claims are reasonable. No extra enforcement action is needed to achieve that suppression. The constitutional harm directly results from the statute's existence.

This design exemplifies what legal scholars have termed the “weaponization” of attorney fees: the use of asymmetric, mandatory fee-shifting not to compensate prevailing parties, but to deter disfavored categories of constitutional litigation *ex ante*. Rebecca Aviel & Wiley Kersh, *The Weaponization of Attorney's Fees in an Age of Constitutional Warfare*, 73 Stan. L. Rev. 123, 128–34 (2021).

The district court erred in dismissing this case on two grounds. First, the case is not moot because the Fee Law continues to chill Appellants' protected activity daily, establishing a present and ongoing injury in fact. Second, the State Defendants are not entitled to sovereign immunity where their official actions have created and continue to maintain an unconstitutional statutory regime.

The district court concluded that *Ex parte Young* does not apply because neither the Governor nor the Attorney General has “direct authority to order fees,” and because the statute is “enforced” only by

courts. That conclusion is legally incorrect. The Supreme Court has never required that a defendant be the immediate enforcer of a statute; it requires only that the official have “some connection with the enforcement of the act.” *Ex parte Young*, 209 U.S. 123, 157 (1908). The Governor and Attorney General have that connection by virtue of their authority over the State’s legal position, statutory defense, and continuing operation of the challenged regime.

The district court’s approach elevates form over substance. If accepted, it would allow States to insulate unconstitutional laws from federal review simply by structuring enforcement through judicial mechanisms. That result is incompatible with the Supremacy Clause. U.S. Const. art. VI, cl. 2. The Fee Law would provide a template for suppressing constitutional challenges across sensitive domains—from religious displays and election administration to environmental regulation and land use—by attaching punitive financial consequences to the act of petitioning itself. In each case, the State could deter disfavored challenges without ever directly prosecuting or sanctioning a citizen.

A consistent pattern emerges in such schemes: (1) the State engages in viewpoint-based discrimination against protected activity; (2) it uses the threat of financial ruin to deter that activity; and (3) it structures the statute to avoid ordinary pre-enforcement review by channeling its operation through judicial processes. Where all three are present, federal supremacy requires that courts apply *Ex parte Young* flexibly enough to prevent States from evading constitutional accountability through procedural operation. This is not an extension of the *Ex parte Young*, but an application to a specific type of statute that otherwise improperly resists review.

II. STATEMENT OF ISSUES

1. Whether the challenged Fee Law is unconstitutional.
2. Whether the Appellants have Article III standing.
3. Whether or not the case is moot.
4. Whether the State Defendants are proper defendants under *Ex parte Young* analysis.

III. PROCEDURAL HISTORY

Plaintiffs' Second Amended Complaint was filed on September 17, 2024. App. Vol. I, p. 49. Defendants filed their respective Motions to Dismiss on October 24, 2024. App. Vol. I, p. 73 & 101. Plaintiffs filed their motion for preliminary injunction on November 18, 2024. App. Vol. II, p. 294.

Almost a year later, on September 30, 2025, the District Court issued an Order granting the defendants' respective Motions to Dismiss, and determining the Motion for Injunctive Relief was moot. App. Vol. II p. 586. The court filed a final judgment dismissing the case without prejudice the same day. App. Vol. II, p. 598. Plaintiffs/Appellants filed a notice of appeal on October 10, 2025. App. Vol. II, p. 599.

IV. JURISDICTION AND STANDARD OF REVIEW

This matter arises as a pre-enforcement facial challenge to Colorado Fee Law, based upon the First Amendment and Equal Protection under the law. See U.S. Const. amend. I, and U.S. Const. amend. XIV, §1. Jurisdiction is therefore appropriate under 28 U.S.C. §1291. This matter was timely appealed on October 10, 2025, which is

less than 30 days from the September 30, 2025, Order and Final Judgment filed by the District Court. App. Vol. II pp. 598 & 599.

Although the trial court did not reach the merits of the Appellants' claim, this court has the inherent power to reach the merits, so long as it finds the case is not moot. This circuit stated in *Hicks v. Gates Rubber Co.* 928 F. 2d 966, 970 (10th Cir. 1991):

“Exceptions to this rule are rare and generally limited to cases where the jurisdiction of a court to hear a case is questioned, sovereign immunity is raised, or when the appellate court feels it must resolve a question of law to prevent a miscarriage of justice.”

“The matter of what questions may be addressed for the first time on appeal is within our discretion and decided on a case-by-case basis.” *Id.* As this facial challenge to the Fee Law is entirely a matter of law, with no need for or relevance to any factual predicates, this case is precisely the type in which the merits are appropriate for review.

Review of a dismissal based on sovereign immunity is *de novo*. See *Governor of Kan. v. Kempthorne*, 516 F.3d 833, 841 (10th Cir. 2008). Review of a motion to dismiss is also *de novo*. *Khalik v. United Air Lines*, 671 F.3d 1188, 1190 (10th Cir. 2012).

V. THE FEE LAW IS FACIALLY INCOMPATIBLE WITH THE FIRST AMENDMENT

A. The First Amendment broadly protects the right to petition one's government

The Supreme Court has also long recognized that “collective activity undertaken to obtain meaningful access to the courts is a fundamental right within the protection of the First Amendment.” *Bhd. of R.R. Trainmen v. Va. ex rel. Va. State Bar*, 377 U.S. 1, 7 (1964). This right to petition extends beyond the legislative and executive branches to “all departments of the government.” *Borough of Duryea v. Guarnieri*, 564 U.S. 379, 382 (2011) (describing the right of access to courts as “essential to freedom”); *United Transp. Union v. State Bar of Mich.*, 401 U.S. 576, 585–86 (1971) (holding that the First Amendment forbids restraints that effectively prevent groups from “unit[ing] to assert their legal rights” and invalidates regulations that deny “meaningful access to the courts”).

In *Boddie v. Connecticut*, 401 U.S. 371, 381 (1971), the Court held that conditioning access to the courts on the ability to pay filing fees violates procedural due process. Although the State has a legitimate interest in the prevention of frivolous litigation, that interest is not

“sufficient to override the interest of these plaintiff-appellants in having access to the only avenue open for dissolving their allegedly untenable marriages.” *Id.* at 381. the Supreme Court held that making access to courts dependent on the ability to pay filing fees violates procedural due process. Although the state’s interest in “prevention of frivolous litigation is substantial,” this interest is not “sufficient to override the interest of these plaintiff-appellants in having access to the only avenue open for dissolving their allegedly untenable marriages.”

B. The filing of non-frivolous 106(a) claims in Colorado Court is a protected First Amendment activity

As stated, the Fee Law is meant to limit disfavored groups’ access to the courts that challenge local government land use decisions. The official “fact sheet” described the Fee Law’s purpose as aiming to “dissuad[e] Rule 106 appeals that are likely to be unsuccessful.” App. Vol. II, p. 370. However, the law extends well beyond frivolous claims. It explicitly targets reasonable but unsuccessful challenges and is also operates to “dissuade” potentially successful claims.

This Circuit has already held that unsuccessful but reasonable (i.e. non-frivolous) Colorado 106(a) claims are protected under the First

Amendment. *CSMN Investments v. Cordillera Metro. Dist.* 956 F.3d at 1284. The inevitable outcome is the deterrence of lawful, constitutionally protected oversight of government actions, which is simply barred under any interpretation of the First Amendment.

C. The Fee Law constitutes an inappropriate and unconstitutional viewpoint discrimination

“The government offends the First Amendment when it imposes financial burdens on certain speakers based on the content of their expression.” *Rosenberger v. Rector and Visitors of Univ. of Va.*, 515 U.S. 819, 828 (1995) “When the government targets not subject matter, but particular views taken by speakers on a subject, the violation of the First Amendment is all the more blatant.” *Id.*

“[I]f the constitutional concept of ‘equal protection of the laws’ means anything, it must at least mean that a mere [legislative] desire to harm a politically unpopular group cannot be a legitimate government interest.” *Dept. of Ag. v. Moreno*, 413 U.S. 528, 534 (1973).

The Fee Law constitutes blatant viewpoint discrimination by explicitly favoring residential developers over local citizens. The Fee Law states “[t]he court shall award reasonable attorney fees to a prevailing governmental entity” when a claim is brought challenging

the *granting* of residential development. The following section then specifically exempts residential developers from the risk of attorney fees as the Fee Law does “not apply to an action for judicial review brought by the land use applicant before the governmental entity.” Finally, there is no provision allowing for the award of attorneys’ fees in any circumstances if any plaintiff successfully sues the government itself.

The Fee Law, therefore, establishes viewpoint discrimination under First Amendment review. It not only shields developers from legal risks but also safeguards the government itself. Although the State of Colorado might view any opposition to new housing as an “unpopular” and “disfavored” point of view, such unpopular views are equally protected by the First Amendment.

Since the statute intentionally targets protected First Amendment activity based on viewpoint discrimination, the constitutional analysis is clear: the statute is unconstitutional. No further balancing or justification is needed.

D. The Fee Law acts as a “prior restraint” on the right to petition

In *Bantam Books v. Sullivan*, 372 U.S. 58, 70 (1963) the Court stated that “[a]ny system of prior restraints of expression comes to this

Court bearing a heavy presumption against its constitutional validity.” The court acknowledged the self-censorship aspect of the law as “a scheme of state censorship effectuated by extralegal sanctions.” The Justices noted that “[w]e are not the first court to look through forms to the substance and recognize that informal censorship may sufficiently inhibit the circulation of publications to warrant injunctive relief.”

The Court identified the central substantive issue with the law, stating it acted as a “system of prior administrative restraints,” which creates “the vice of the system. The Commission's operation is a form of effective state regulation superimposed upon the State's criminal regulation of obscenity and *making such regulation largely unnecessary.*” *Id.* at 69, emphasis added. Had this case been brought as a pre-enforcement challenge, the result would be identical.

“The special vice of a prior restraint is that communication will be suppressed . . . before an adequate determination that it is unprotected by the First Amendment.” *Near v. Minnesota ex rel. Olson*, 283 U.S. 697, 716 (1931).

The Fee Law acts as a prior restraint, preventing individuals from engaging in constitutionally protected activities by threatening severe

financial penalties. Its primary purpose is to discourage/prevent most First Amendment speech related to filing 106(a) claims. The Fee Law is Unconstitutional

The statute does not merely regulate procedure or allocate ordinary litigation costs; it imposes a mandatory, asymmetric financial penalty on a defined class of litigants for seeking judicial review itself. That penalty predictably deters collective and individual petitioning. It makes access to the courts contingent on the willingness to assume potentially ruinous financial risk, precisely the kind of restraint the First Amendment forbids. *See Bhd. of R.R. Trainmen v. Va. ex rel. Va. State Bar*, 377 U.S. 1, 7 (1964); *Borough of Duryea v. Guarnieri*, 564 U.S. 379, 382 (2011); *United Transp. Union v. State Bar of Mich.*, 401 U.S. 576, 585–86 (1971).

And like the \$60 court filing fee invalidated in *Boddie*, the Fee Law conditions access to the only available forum for challenging government land-use decisions on the ability to bear a state-imposed financial burden — but with far greater coercive effect, because the amount is not fixed or predictable and is triggered precisely by the exercise of the right to petition. 401 U.S. at 381.

The Constitution does not permit the State to discourage disfavored constitutional claims by attaching punitive costs to their assertion. *Ex parte Young*, 209 U.S. 123 (1908). The Fee Law does exactly that and therefore constitutes an unconstitutional infringement of the First Amendment right to petition and of the due process right to meaningful access to the courts.

VI. ARTICLE III JURISDICTION

To establish Article III standing, a plaintiff must show (1) an “injury in fact,” (2) a sufficient “causal connection between the injury and the conduct complained of,”² and (3) a “likel[i]hood” that the injury “will be redressed by a favorable decision.” *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 158 (2014), citing *Lujan v. Defenders of Wildlife*, 504 U.S. 555, 560-561 (1992).

A. Injury-in-fact

In First Amendment cases, the injury-in-fact requirement is satisfied when a plaintiff shows a “credible threat” of enforcement. 303

² The second factor is essentially identical to the *Ex parte Young* analysis regarding “enforcement” and as such will be addressed later in the brief.

Creative, LLC v. Elenis, 600 U.S. 570, 2308 (2023).³ Standing is also appropriate when the law itself creates a chilling effect on protected activity, leading to self-censorship. See *Virginia v. American Booksellers Ass’n*, 484 U.S. 383 (1988) (the Court explained it was “not troubled by the pre-enforcement nature of this suit” because the law was enacted, the plaintiffs were subject to it, and its chilling effect was immediate.” *Id.* at 393.)

Here, the credible threat under the Fee Law is constant and ongoing: it deters Appellants from filing Rule 106(a) petitions that the First Amendment would otherwise protect. That self-censorship constitutes a concrete injury in fact sufficient to establish Article III standing.

³ In *303 Creative LLC v. Elenis*, 600 U.S. 570 (2023), the Supreme Court reviewed Colorado's Anti-Discrimination Act (“CADA”), which might have required the plaintiff to offer wedding website design services to same-sex clients. The plaintiff was a graphic designer who (1) had not yet started her wedding website design business, (2) worried a same-sex couple might ask her for her services, and (3) if she refused to serve such a couple, she (4) might be prosecuted under Colorado’s anti-discrimination law then in effect. (*Id.* at 2303.)

B. Casual connection to the State Defendants

Article III standing requires a plaintiff to show that its injury is “fairly traceable” to the challenged conduct of the defendant, rather than to the independent action of third parties not before the court. *Lujan v. Defs. of Wildlife*, 504 U.S. at 560. Causation is also satisfied where the defendant’s conduct has a determinative or coercive effect on third parties or otherwise meaningfully contributes to the injury. *See Bennett v. Spear*, 520 U.S. 154, 168–69 (1997); *Massachusetts v. EPA*, 549 U.S. 497, 523–26 (2007). The standing test for causation is functionally equivalent to the “enforcement” prong of the *Ex parte Young* analysis, and both are discussed below.

In the pre-enforcement case of *Petrella v. Brownback*, 697 F.3d 1285, 1294 (10th Cir. 2012) this circuit held that “[i]t cannot seriously be disputed that the proper vehicle for challenging the constitutionality of a state statute, where only prospective, non-monetary relief is sought, is an action against the state officials responsible for the enforcement of that statute.” *Id.* at 1293-1294. This court continued, “[n]or can it be disputed that the Governor and Attorney General of the state of Kansas

have responsibility for the enforcement of the laws of the state.” *Id.* citing Kan. Const. art. I §3; Kan. Stat. Ann. §75-702.

In *Los Angeles County Bar Ass'n v. Eu*, 979 F.2d 697 (9th Cir. 1992), the Bar Association brought a pre-enforcement challenge to state legislation limiting the number of judges in California. The Bar Association brought claims against both Governor Wilson and Secretary of State Eu for relief. The Ninth Circuit determined that both individuals were subject to *Ex parte Young* review because the specific statute was “simply not the type of statute that gives rise to enforcement proceedings.” *Id.* at 704. Additionally, the court found that Governor “Wilson has a duty to appoint judges to any newly-created judicial positions, and Eu has a duty to certify subsequent elections for those positions.” *Id.* at 704. The court found these relations were “fairly direct” and sufficient for *Ex parte Young* jurisdiction.

Miller v. Bonta, 646 F. Supp. 3d 1218 (2023), involved another pre-enforcement challenge very similar to the current case. The challenged statute involved a one-sided attorney-fee-shifting provision similar to those found in both Texas SB 8 and the Fee Law, but in the context of challenging gun control regulations. The fee provision mandated an

award of attorney fees against any litigant who unsuccessfully challenged the gun control regulations in court. Therefore, the “enforcement” mechanism was identical to that of the current challenged Fee Act, which is only “enforced” by the court at the end of the litigation, but not by the Governor or Attorney General. The district court enjoined both the Attorney General and the Governor from enforcing the unconstitutional attorney fees provision, which is the identical relief sought in this case.

i. The Attorney General has a causal connection to the Fee Law

Attorney General Weiser bears significant responsibility for determining and providing opinions on whether matters within the state are constitutional. In Colorado, the Attorney General has the “duty to render his opinion on the constitutionality of a statute[s].” (App. Vol. I, p. 193.)

“The formulation of the opinion [regarding constitutionality] is the attorney general's sole responsibility and must be discharged to the best of his ability.” *Id.* p. 644.

Not only is it the duty of the Colorado Attorney General to opine on the constitutionality of Colorado statutes, but it is also his duty to defend these statutes in court when required to do so. Under Col. R. Civ. P. 57(j), declaratory relief, the Attorney General's office must be notified of any challenges to the constitutionality of laws or ordinances, and they are "entitled to be heard." See also Col. Rev. Stat. §13-51-115.

The Attorney General's role is more than just advisory; it is an active part in enforcing the Fee Law. The Attorney General's office defends such laws in the very proceedings in which they are challenged, advocates the State's interpretation of the law, and helps ensure their enforcement. By defending this action and failing to issue a written decision finding the Fee Law clearly unconstitutional, the Attorney General enables and promotes the law's chilling effect on all Colorado citizens on a daily basis. The Attorney General's role is a necessary institutional component of the statute's operation — without the State's authoritative defense, interpretation, and invocation of the statute, the chilling effect would collapse.

For these reasons, Attorney General Weiser is not a peripheral or merely symbolic defendant, but a key participant in the enforcement of

the Fee Law. His statutory duty to assess constitutionality, his mandatory role in defending the statute when challenged, and his active promotion of its validity all establish the “some connection” to enforcement required under *Ex parte Young*. His actions are what give the statute legal force in adversarial proceedings and support its ongoing deterrent impact on protected petitioning activity.

An injunction against the Attorney General would therefore address the Appellants’ injury by removing the State’s official support and defense of the Fee Law and preventing its continued use in constitutional challenges. The Governor has a causal connection to the enforcement of this act

The Governor is constitutionally charged with ensuring that the laws of the State are faithfully executed. Colo. Const. art. IV, §2. Where the constitutional violation arises from the State’s overall statutory design — not from a single ministerial act — the Governor’s supervisory role is sufficient. Appellants presented evidence that the Fee Law was coordinated between Gov. Polis’ office and the sponsors of the bill. App. Vol. II, p. 321, (¶¶ 4-18). Gov. Polis signed the bill into law. *Id.* p. 331.

In *Wildgrass Oil & Gas Comm. v. Colorado*, 447 F. Supp. 3d 1051 (D. Colo. 2020), *aff'd*, 843 F. App'x 120 (10th Cir. 2021), district court judge Jackson wrote that Eleventh Amendment immunity does not apply to Gov. Polis in light of relevant Colorado law, making him the chief executive of the state. He stated that “in Colorado, when [the defendant] is an administrative agency, or the executive branch of government, or even the state itself, the Governor, in his official capacity, is a proper defendant because he is the state's chief executive. For litigation purposes, the Governor is the embodiment of the state.”

The oversight role of Governor Polis is no greater than that found sufficient in *Petrella*, where the law prohibited schools from fundraising over certain levels.

For these reasons, Governor Polis is a proper defendant under *Ex parte Young*. The constitutional injury alleged here does not arise from an isolated enforcement decision, but from a statewide statutory scheme that he helped create, signed into law, and now oversees as the State's chief executive. His constitutional duty to ensure that the laws are faithfully executed, his coordination with the statute's sponsors, and his role in signing the Fee Law into effect together establish a sufficient

connection to the challenged statute. An injunction against the Governor would meaningfully redress Appellants' injury by preventing the State's continued implementation and defense of a statutory design that chills protected petitioning activity.

As in *Wildgrass* and *Petrella*, the Governor's supervisory and coordinating authority is precisely the type of connection that makes prospective relief effective and appropriate. Accordingly, Governor Polis is not a nominal or symbolic party, but a proper defendant against whom this Court may grant relief to halt the ongoing constitutional violation.

C. Redressability

As to the third factor regarding "redressability," in *Chamber of Commerce v. Edmondson*, 594 F.3d 742 (10th Cir. 2010) this Circuit examined the Oklahoma Taxpayer and Citizen Protection Act of 2007, and the Chamber of Commerce sued the Attorney General to stop enforcement. One of the challenged provisions prevented companies that refused to use "Basic Pilot" (an immigration status website from contracting with the state.

This circuit looked at whether the Attorney General of Oklahoma was in a position to "redress" the complained of harm, which would

thereby provide “some connection” to him. There is a significant overlap between the *Ex parte Young* test for “enforcement” and the test for “redressability,” in that both look to whether the particular defendant can do anything about the alleged harm.

This Circuit wrote that the plaintiffs “need not show that a favorable decision will relieve [their] every injury.” *Id.* at 757. Rather, a plaintiff needs only to show “an injury ... that is likely to be redressed by a favorable decision.” *Id.* The court noted the Attorney General’s job included drafting contracts for state officials upon request. Okla. Stat. tit. 74, §18b(A)(7) Additionally, he has a duty “to initiate or appear in any action in which the interests of the state or its people are at issue.”

Based on these job duties, this Circuit determined that “the harms alleged by [plaintiffs] will likely be ‘reduced to some extent’ by an injunction running against the Attorney General.” *Id.* at 57-58. An injunction “would prevent him from inserting into such contracts a provision requiring use of Basic Pilot, or from refusing to prepare a contract because it violates the terms of Section 7(B).” Further, an “injunction would prevent him from filing lawsuits or defending against suits on the basis of Section 7(B).” *Id.*

In *Petrella* this circuit addressed the redressability of a state law limiting school fundraising as it applied to the Attorney General and Governor. This circuit wrote:

“Appellants could also get relief through an injunction against the Act as a whole, because it would redress Appellants' alleged injury of discriminatory treatment. . . . In summary, injunctive or declaratory relief as to the [fundraising] cap alone would, on the facts alleged, redress the injury by extending to Appellants the benefit they claim to be deprived of, and injunctive or declaratory relief as to the Act as a whole would also redress the injury of constitutionally unequal treatment by withdrawing from all school districts the alleged discriminatory benefit.”

Id. at 1295.

Together, *Edmondson* and *Petrella* confirm that redressability does not require a defendant to be the sole or immediate enforcer of a statute, but only that an injunction against that defendant is likely to reduce or alleviate the plaintiff's injury. Here, as in those cases, an injunction against the State Defendants would meaningfully diminish the constitutional harm by preventing the State from continuing to implement, defend, and give legal effect to a statutory regime that chills protected petitioning activity.

Just as in *Edmondson*, where an injunction against the Attorney General would have lessened the harms by preventing him from

defending the law in court, and in *Petrella*, where blocking the Act as a whole would remedy unequal treatment even without specific enforcement, prospective relief here would directly reduce the chilling effect of the Fee Law by removing the State’s official approval and support for its enforcement. That is all Article III requires. Because an injunction would lessen the deterrent effect of HB24-1107 and restore fairness in exercising First Amendment rights, Appellants have met the redressability requirement.

D. The case is not moot

The Supreme Court has repeatedly recognized that ripeness and mootness are applied more flexibly in the First Amendment context because of the risk that overly broad or vague laws could suppress protected speech. *See Broadrick v. Oklahoma*, 413 U.S. 601, 612 (1973); *Steffel v. Thompson*, 415 U.S. 452, 459 (1974); *Va. v. Am. Booksellers Ass’n*, 484 U.S. 383, 392–93 (1988); *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 158–61 (2014).

First Amendment doctrine also permits plaintiffs to assert the rights of third parties in circumstances where such standing would otherwise be unavailable. “[G]iven a case or controversy, a litigant

whose own activities are unprotected may nevertheless challenge a statute by showing that it substantially abridges the First Amendment rights of other parties not before the court.” *Schaumburg v. Citizens for a Better Environment*, 444 U.S. 620, 634 (1980).

Here, the district court concluded that Appellants’ claims were moot. That conclusion is inconsistent with governing First Amendment principles. There is no requirement that a plaintiff first suffer enforcement of a statute—or pursue and lose a state-court action—before seeking federal review of a law that chills protected activity. Nor does the termination of a particular state proceeding moot a challenge to a statute that remains operative and continues to deter constitutionally protected conduct.

Each Appellant has demonstrated prior engagement in Rule 106(a) litigation and has alleged facts showing a present and ongoing deterrent effect on their willingness to pursue such claims in the future. See App. Vol. II, p. 423, (¶¶10-17), p. 430 (¶¶5-6), p. 504 (¶¶ 24-25), p. 521 (¶¶6-8), p. 584 (¶¶5-6). That showing satisfies the injury-in-fact requirement in the First Amendment context. *Va. v. Am. Booksellers Ass’n*, 484 U.S. 383, 392–93 (1988).

So long as the Fee Law remains in effect, this case is not moot because the statute continues to chill Appellants' protected petitioning activity by deterring the filing of Rule 106(a) actions through the threat of financial penalties. The case is also ripe: no further enforcement is necessary to create that injury, because the constitutional harm arises from the statute's present deterrent effect on First Amendment activity.

VII. EX PARTE YOUNG AND FEDERAL SUPREMACY

A. The decision of the district court

The district held that "Polis and Weiser each are entitled to Eleventh Amendment immunity, and thus, the Court lacks subject matter jurisdiction over Plaintiffs' claims against them." App. Vol. II, p. 595. The court found that neither Polis nor Weiser had "direct authority to order fees under the statute." App. Vol. II, p. 594.

That analysis applies the wrong legal standard. The Supreme Court has never required that a defendant have "direct authority" to enforce a statute. Rather, the inquiry is whether the official has "some connection with the enforcement of the act." *Ex parte Young*, 209 U.S. at 157. Indeed, even that formulation reflects a functional test rather than a rigid requirement.

The district court also failed to recognize the close relationship between the *Ex parte Young* inquiry and the Article III standing analysis by rejecting the review of cases where a state official voluntarily waives 11th Amendment immunity to defend a statute in federal court.

The error is that courts treat the “some connection” requirement and Article III’s causal relationship and redressability requirements as two expressions of the same functional question: whether the official’s authority makes him a meaningful cause of — and a meaningful remedy for — the plaintiff’s injury.

The Tenth Circuit applies the same logic, holding that enforcement authority establishes traceability and redressability, while its absence defeats both. *See Hill v. Kemp*, 478 F.3d at 1256–57; *Chamber of Commerce v. Edmondson*, 594 F.3d at 760–61.; *Bronson v. Swensen*, 500 F.3d 1099, 1110–11 (10th Cir. 2007). Thus, whether an official has a “connection to enforcement” and whether an injunction against that official would “redress” the injury are not separate questions but include substantial overlap expressed in different doctrinal terms.

This Court’s decision in *Rocky Mountain Gun Owners v. Polis*, 121 F.4th 96 (2024), illustrates the point. There, although the district court correctly noted that Governor Polis had waived Eleventh Amendment immunity, this Court nonetheless conducted a full Article III standing analysis, asking whether there was “a causal connection between the injury and the conduct complained of” and whether the Governor had the authority to redress that injury. *Id.* at 111.

The Court held that because the Colorado Constitution vests the “supreme executive power of the state” in the Governor and requires him to “take care that the laws be faithfully executed,” Colo. Const. art. IV, §2, plaintiffs’ inability to purchase certain firearms was “directly caused by the enforcement of SB 23-169 by Governor Polis and the State of Colorado.” *Rocky Mountain Gun Owners*, 121 F.4th at 111. The Court further held that an injunction against the Governor would redress that injury by removing the legal barrier to the plaintiffs’ conduct.

It would be inconsistent to hold that an official has sufficient authority to cause and redress a constitutional injury for purposes of Article III standing yet lacks the “some connection” required under *Ex parte Young* to permit prospective relief. If an official’s connection to a

statute is sufficient to establish traceability and redressability when he defends the law in federal court, it is necessarily enough to satisfy the more permissive *Ex parte Young* standard.

B. The purpose and policy of *Ex parte Young*

As Justice Scalia wrote for the Supreme Court in 2015, “the ability to sue to enjoin unconstitutional actions by state and federal officers is the creation of courts of equity and reflects a long history of judicial review of illegal executive action, tracing back to England.” *Armstrong v. Exceptional Child Ctr., Inc.*, 575 U.S. 320, 327 (2015). *Young* established *pre-enforcement* litigation on the presumption that defensive litigation may not provide an adequate remedy or opportunity to protect constitutional rights.

In *Mitchum v. Foster*, 407 U.S. 225, 240 (1972), the Supreme Court provided some history about the precursor to 42 U.S.C. §1983, explaining that the law’s purpose “is clear from the legislative debates surrounding passage of §1983’s predecessor that the Act was intended to enforce the provisions of the Fourteenth Amendment ‘against State action, . . . whether that action be executive, legislative, or judicial.’ *Ex parte Virginia*, 100 U. S. 339, 346 (1879).”

The Supreme Court has repeatedly recognized that pre-enforcement challenges are a proper and often necessary way to protect constitutional rights, especially First Amendment rights, mainly because the Constitution does not require a plaintiff to risk enforcement or punishment before seeking review. *See Steffel v. Thompson*, 415 U.S. at 459–60. (“[I]t is not necessary that petitioner first expose himself to actual arrest or prosecution to be entitled to challenge a statute that he claims deters the exercise of his constitutional rights.”); *MedImmune, Inc. v. Genentech, Inc.* 549 U.S. 118, 129, 127 S.Ct. 764, 772 (2007) (rejecting the idea that a plaintiff must “bet the farm” by breaking the law to get a court to review its validity).

The overriding rationale in *Young* flowed not from the particular facts of the case, but as the Supreme Court wrote, “the *Young* doctrine has been accepted as necessary to permit the federal courts to vindicate federal rights and hold state officials responsible to ‘the supreme authority of the United States.’” *Pennhurst State Sch. & Hosp. v. Halderman*, 465 U.S. 89, 105 (1984) (quoting *Young*, 209 U.S. at 160).

Young remains the leading precedent and basis for analysis in this court. In that case, the severe penalty that barred the plaintiffs from

accessing the court included the possibility of a felony conviction and a \$5,000 fine (about \$150,000 today). The “fine” in this case is essentially comparable to a modern attorney fee award, which could easily be equal to or greater than this amount in today’s dollars.

The severe penalties were the basis of the Court’s conclusion that “no adequate remedy” at law existed, since any Railroad official would be required to face the punitive fine and possible criminal conviction to test the validity of the law in a state court. *Id.* p. 164. The Court concluded it would be a “wonder” if “a single agent should be found ready to take the risk.” Thereby, the Court concluded “a remedy at law” was “plainly inadequate” and the proper remedy “a suit in equity.” *Id.*

In *Young*, there was no question about who was planning or could enforce the unconstitutional provisions, as the “Attorney General of the State” had already sought “to enforce its provisions, to the injury of the company.” *Id.* at 149. Since “enforcement” was not at issue, the Court recognized that the “most material and important objection” is “that the suit is, in effect, one against the State of Minnesota.” *Id.*

The Court determined that such a suit against a state official is not a suit against the State. The Court concluded that so long as there

is an officer of the State who is “clothed with some duty in regard to the enforcement of the laws of the State,” they may be enjoined in equity.

Id. at 156.⁴

**C. There is no significant constitutional
difference between offensive vs. defensive
challenges**

This Court’s analysis should begin with the recognition that constitutional review does not turn on the procedural posture in which a federal question arises. The Constitution does not distinguish between “offensive” and “defensive” challenges to unconstitutional state action, nor does it condition federal supremacy on whether a plaintiff seeks pre-enforcement relief or instead is forced to endure enforcement and litigate after the fact. In all such cases, the federal court is asked to perform the same function: to determine whether state action violates the Constitution and, if so, to prevent its continued operation. That substantive inquiry does not change depending on the timing or posture of the challenge, and the availability of federal review cannot depend on

⁴ The court distinguished the earlier case of *Fitts v. McGhee*, 172 U.S. 516 (1899) that involved a purely private right of action.

whether a State chooses to channel enforcement through executive action or through litigation itself.

There is no constitutional distinction between a statute that is unconstitutional on its face and therefore subject to pre-enforcement challenge, and a statute that is unconstitutional as applied and therefore typically challenged only after enforcement. The Supremacy Clause does not make federal rights contingent on procedural posture, and the Eleventh Amendment does not permit States to evade federal review by structuring enforcement to occur only through litigation.

When a constitutional issue arises defensively in a state court and is later reviewed by the Supreme Court, the federal question remains the same, and the focus stays on whether state law complies with the Constitution.

Restricting offensive challenges to unconstitutional laws gives States unilateral control over when and how constitutional review may occur, contrary to the Supremacy Clause and to the principle that constitutional rights may be asserted before, not only after, they are violated.

D. The state defendants are proper *Ex parte Young* defendants

For these same reasons, both the Attorney General and the Governor have a sufficient causal connection to the Fee Law to satisfy Article III standing, and thereby “some” connection to enforcement to satisfy *Ex parte Young*.

The Tenth Circuit applies a consistent three-part test to determine whether *Ex parte Young* permits suit against state officials: the plaintiff must sue state officials rather than the State, allege an ongoing violation of federal law, and seek prospective relief. *Muscogee (Creek) Nation v. Pruitt*, 669 F.3d 1159, 1167 (10th Cir. 2012); *Hill v. Kemp*, 478 F.3d 1236, 1255 (10th Cir. 2007); *ANR Pipeline Co. v. Lafaver*, 150 F.3d 1178, 1188 (10th Cir. 1998).

On this basis, the district court’s decision on sovereign immunity cannot stand. The fundamental tenet of review is that “[w]here prospective relief is sought against individual state officers in a federal forum based on a federal right, the Eleventh Amendment, in most cases, is not a bar.” *Idaho v. Coeur d’Alene Tribe of Idaho*, 521 U.S. 261, 277 (1997).

The limitation described in *Young* is practical, not technical. It aims to ensure that relief is effective and that defendants are not merely stand-ins for the State. In this case, the Governor and Attorney General are not symbolic defendants; they are the only officials whose actions uphold the statutory scheme. Preventing them from acting would remedy Plaintiffs' injury by stopping the State from enforcing, defending, and interpreting the challenged law. Without such relief, Plaintiffs have no way to protect their constitutional rights. Nothing in *Young* or its successors requires courts to permit that outcome.

The question is not whether the Attorney General or Governor personally calculates or enters a fee award under the Fee Law, but whether they have "some connection with the enforcement of the act." *Id.* at 157. The Supreme Court has made clear that this requirement is functional, not formal, and exists to ensure that the relief redresses the alleged constitutional injury. Here, that requirement is satisfied.

The Fee Law is a state-imposed penalty administered through state judicial processes, available only to government defendants, and triggered when a constitutional right to seek judicial review is exercised. The statute functions solely because the State enacted it, directed courts

to enforce it, and authorized governmental entities to invoke it. This is enough to establish the required link between the challenged law and the State's executive officers under *Ex parte Young*.

E. Filing in state court is an inadequate remedy at law

The district court held that federal review under *Ex parte Young* is unnecessary, as there is an adequate remedy at law in state court. App. 595. However, this is incorrect.

Appellants would face limited options in state court. They could file a 106(a) action there and, if that fails, challenge the Fee Act in the trial court. If they succeed in challenging the Fee Act, local governments are unlikely to appeal the ruling, avoiding the risk of an adverse decision against the fee law in higher courts. If plaintiffs lose, they can appeal to the Colorado Court of Appeals and, if unsuccessful, seek a *writ* with the Colorado Supreme Court, which is always uncertain. If they do not prevail in that forum, there is a slight chance of obtaining review from the U.S. Supreme Court through a *writ of certiorari*, as the only possible federal remedy.

As a result of the foregoing, the plaintiffs would have to place themselves in the very jeopardy envisioned in *Ex parte Young* to sustain

a substantial financial injury to test the law, and they would have to rely on both the state supreme court and the U.S. Supreme Court to grant certiorari if they are not successful below. This is not an adequate remedy at law.

VIII. LEGAL SCHOLARSHIP

The challenged Fee Law exemplifies what legal scholars have recently identified as the “weaponization” of attorney fees: the use of asymmetric, mandatory fee-shifting not to compensate prevailing parties, but to deter disfavored categories of constitutional litigation *ex ante*. See Rebecca Aviel & Wiley Kersh, *The Weaponization of Attorney’s Fees in an Age of Constitutional Warfare*, 73 Stan. L. Rev. 123, 128–34 (2021).

As Aviel and Kersh explain, modern fee-shifting regimes increasingly function not as neutral cost-allocation devices but as “regulatory weapons” that “raise the price of constitutional challenge itself” to insulate politically sensitive laws from judicial review. *Id.* at 130. This Fee Law does precisely that: it imposes mandatory fee liability only on one class of litigants — those who petition for judicial review of

certain land-use decisions — and only when they lose, while imposing no reciprocal risk on the government or on parties who support the challenged action.

Aviel and Kersh warn that such regimes pose a structural threat to constitutional accountability because they “convert the ordinary risk of losing into a coercive sanction” and thereby chill even reasonable, good-faith claims. *Id.* at 131–33. That concern is not abstract and is well-founded in light of the current Fee Law at issue.

Leading scholarship also confirms that *Ex parte Young* is neither a narrow technicality nor an expendable fiction but a crucial structural mechanism essential for maintaining federal supremacy and ensuring meaningful constitutional review. Professor Vicki Jackson explains that *Young* provides a vital counterbalance to state sovereign immunity: if the Eleventh Amendment prevents suits directly against states, federal courts still need the authority to prevent state officials from violating federal law. Without this power, enforcing constitutional rights becomes nearly impossible. Vicki C. Jackson, *Seminole Tribe, the Eleventh Amendment, and the Potential Evisceration of Ex parte Young*, 72 N.Y.U. L. Rev. 495, 515–24 (1997). Jackson warns that attempts to

restrict *Young* risk transforming sovereign immunity into immunity from constitutional oversight by enabling states to dodge review through procedural tactics.

Professors Pfander and Wentzel complement that structural account with a historical one. They demonstrate that prospective relief against unlawful official action has deep roots in the common law and equity, and that *Ex parte Young* reflects, rather than departs from, the traditional judicial function of restraining ultra vires government conduct. James E. Pfander & Jacob P. Wentzel, *The Common Law Origins of Ex parte Young*, 72 Stan. L. Rev. 1269, 1272–89 (2020). On their account, *Young* is not an exceptional carve-out but the continuation of a settled remedial practice necessary to prevent the government from accomplishing unlawful ends through formal state mechanisms. *Id.* at 1290–1303.

Together, these analyses establish that *Ex parte Young* must be applied in a functional, not a formalistic, manner. It exists both to protect the enforceability of federal rights against sovereign immunity and to uphold the judiciary’s historic role in restraining unlawful state action. That understanding prevents the State’s attempt to shield The

Fee Law from review by framing its constitutional injury through judicially imposed sanctions rather than executive enforcement. If *Young* did not address such schemes, the availability of federal constitutional review would depend on a State's chosen enforcement structure rather than on the supremacy of federal law. Neither history nor legal structure supports that outcome.

Michael T. Morley writes in the *Constitutional Tolling and Preenforcement Challenges to Private Rights of Action*, 97 Notre Dame L. Rev. 1826, 1830–40 (2022) that pre-enforcement constitutional challenges are essential for vindicating fundamental rights, but doctrinal obstacles, primarily when a statute is structured to evade traditional enforcement actors, can leave injured parties without meaningful access to federal review.

In *The Success of Pre-Enforcement Challenge*, Mr. Gouzoules extensively reviewed the tension between permitted and prohibited types of challenges and provides a potential roadmap for review. He notes that “it is not necessarily desirable for certainly unconstitutional laws to remain on the books for want of an appropriate challenger or an

example of enforcement.” A. Gouzoules, *The Success of Pre-Enforcement Challenges*, (Harv. L. Rev. Working Paper, at 621).. (manuscript at 621).

However, this interest is balanced, “against the undesirability of allowing courts to weigh in on speculative disputes.” *Id.* “These competing concerns have traditionally counseled for a jurisprudence cautiously open to pre-enforcement challenges but closed to litigants who cannot point to more than speculation or vague allegations about potential harm.” *Id.*

Mr. Gouzoules’ point is a powerful reminder that these competing interests are not a structural constitutional issue but rather an expression of public policy, in which federal courts seek to avoid making determinations about statutes that may never be enforced. This leads to the conclusion that a significant part of the *Ex parte Young* analysis is more appropriately applied based on a determination of whether there is “redressibility” by the state actors, as discussed in *Chamber of Commerce v. Edmondson*, 594 F.3d at 758. After all, a federal court enjoining someone who has no power to enforce or defend a statute has little to no purpose.

IX. CONCLUSION

The challenged Fee Act is not an ordinary fee-shifting law. It is a specific deterrent aimed at a particular category of constitutional petitions, imposing mandatory, asymmetric financial penalties on those seeking judicial review of certain government actions. The statute creates a constitutional injury and procedural imbalance that, if unaddressed, could allow similar laws to avoid review in the future.

Ex parte Young exists specifically to prevent formalism from overriding substantive constitutional rights. The Attorney General and Governor are the only state officials authorized and responsible for representing the State's interests, defending the Fee Law, and ensuring its consistent application across Colorado. Appellants do not ask this Court to broaden *Ex parte Young*, but to interpret it in a way that aligns with its purpose: preventing States from nullifying federal rights through procedural tactics.

Based on the foregoing, Appellants request that this court enjoin the State Defendants from enforcing, defending, invoking, or giving effect to Colo. Rev. Stat. §13-51.5-104. Additionally, Appellants request the City of Colorado Springs be enjoined from any enforcement, or the seeking of attorney fees under this provision against any unsuccessful plaintiff subject to Colo. Rev. Stat. §13-51.5-104.

Date: January 5, 2026

/s/ Morgan C. Smith
Morgan C. Smith Law Firm
morgan@morgancsmithlaw.com
3130 Last Dollar Rd.
Telluride, CO 81435

Katherine J. Gayle, Attorney at Law
13790 Voyager Parkway
Colorado Springs, CO 80921
970-278-6884
Email: trout_65@yahoo.com

Statement of Compliance

I hereby certify that:

- a. This brief complies with the type-volume limitations of Fed. R. App. P. 32(7) because it contains 9,200 words.
- b. This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because this brief has been prepared in a proportionally spaced typeface using Microsoft Word in Century Schoolbook 14-point font.

Dated: January 5, 2026

/s/ Morgan C. Smith
Morgan C. Smith Law Firm
morgan@morgansmithlaw.com
3130 Last Dollar Rd.
Telluride, CO 81435

Katherine J. Gayle, Attorney at Law
13790 Voyager Parkway
Colorado Springs, CO 80921
970-278-6884
Email: trout_65@yahoo.com

Request for Oral Argument

Pursuant to 10th Cir. R. 28.2(C)(2), Appellants respectfully request oral argument. This appeal presents important and unsettled questions of federal constitutional law, including the scope of the First Amendment right to petition, the availability of pre-enforcement review under *Ex parte Young*, and the relationship between Article III standing, redressability, and Eleventh Amendment immunity when a State structures enforcement through judicial mechanisms rather than executive action.

The appeal also raises significant issues of first impression in this Circuit regarding the constitutionality of mandatory, asymmetric fee-shifting statutes that operate to chill protected petitioning activity and to deter access to judicial review of governmental action. Resolution of these questions will have consequences beyond the parties and affect the availability of federal judicial review for future constitutional challenges to state statutes.

CERTIFICATE OF SERVICE

I hereby certify that on January 6, 2026, I electronically filed a true, correct, and complete copy of the foregoing Revised Opening Brief of Appellant with the Clerk of the Court for the United States Court of Appeals for the Tenth Circuit by using the appellate CM/ECF system. Participants in the case who are registered CM/ECF users will be served by the appellate CM/ECF system:

anne.turner@coloradosprings.gov
crystal.scranton@coloradosprings.gov
erik.lamphere@coloradosprings.gov
terry.johansen@coloradosprings.gov
amy.mckimmey@coloradosprings.gov
jessica.diaz-martin@coloradosprings.gov
eri.howard@coloradosprings.gov

Attorneys for City of Colorado Springs

lily.nierenberg@coag.gov
talía.kraemer@coag.gov
carmen.vanpelt@coag.gov

*Attorneys for Philip J. Weiser
Attorney for Gov. Jared Polis*

Date January 6, 2026

/s/ Morgan C. Smith
Law Office of Morgan C. Smith
3130 Last Dollar Rd.
Telluride, CO 81435
510-928-5454

Attachment 1

SEPTEMBER 30, 2025 Order Re: Two Motions to Dismiss (Dkts. 41 & 42) and Motion for Preliminary Injunction (Dkt. 47)

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
District Judge S. Kato Crews

Civil Action No.: 1:24-cv-01847-SKC-NRN

SANCTUARY FIELD NEIGHBORHOOD NETWORK,
a Colorado Nonprofit Corporation, *et al.*,

Plaintiffs,

v.

PHILIP J. WEISER, Attorney General of Colorado in his official capacity, *et al.*,
Defendants.

**ORDER RE: TWO MOTIONS TO DISMISS (DKTS. 41 & 42) AND
MOTION FOR PRELIMINARY INJUNCTION (DKT. 47)**

This case arises from Plaintiffs’ constitutional challenge to a Colorado law that contains a one-way attorney fees provision that seemingly works a detriment to state citizens who challenge a locality’s land use decisions, even when they prevail. Plaintiffs challenge the constitutionality of Colo. Rev. Stat. § 13-51.5-104, which provides, “[t]he court shall award reasonable attorney fees to a prevailing governmental entity in any action for judicial review of a local land use decision involving residential use with a net project density of five dwelling units per acre or more[.]” (“One-Sided Fee Provision”). Dkt. 28-1 (Second Amended Complaint, or

“SAC”), ¶1.¹ The One-Sided Fee Provision requires Colorado courts to award a local governmental unit its attorney fees if a citizen sues the locality to challenge its land use decision and the locality wins. Colo. Rev. Stat. § 13-51.5-104(1)(a). The locality, on the other hand, is not required to pay the challenger’s attorney fees when the challenger wins. *Id.* And curiously, a developer who makes a Rule 106 challenge to the denial of a development permit is similarly not required to pay the locality’s attorney fees. *Id.* at -104(1)(b). In other words, the statute lopsidedly imposes the risk of an adverse attorney fee award solely on individual citizens who exercise their Constitutional right to challenge a locality’s land use decisions while the locality and developers dodge all risk of paying fees, lose or draw. *See id.* at -104(1).

For purposes of this Order, Plaintiffs are separated into three groups. The Larimer County Group includes Sanctuary Field Neighborhood Network and Miranda Spindel, who were plaintiffs in a Colo. R. Civ. P. 106 (“Rule 106”) action filed in Larimer County District Court, *Sanctuary Field Neighborhood Network, et al. v. Council of the City of Fort Collins*, Case No. 2022CV30661 (“Larimer County Case”). *Id.* at ¶¶15-16. The Jefferson County Group includes Daniels Welchester Neighborhood Association, who was the plaintiff in a Rule 106 action filed in Jefferson

¹ While the Court granted Plaintiffs’ Motion for Leave of Court for Plaintiffs to File Their Second Amended Complaint for Injunctive Relief (Dkt. 28), Plaintiffs never independently docketed the SAC. *See* Dkt. 33 (Order granting relief to file SAC). Thus, the Court treats the SAC filed at Dkt. 28-1 as the operative complaint.

County District Court, *Daniels Welchester Neighborhood Association, et al. v. Jeffco Board of County Commissioners, et al.*, Case No. 2024CV30042 (“Jefferson County Case”). *Id.* at ¶17. And the last is the El Paso County Group that includes Westside Watch, Michael Wemple, and Integrity Matters, who were plaintiffs in *Wemple, et al. v. City of Colorado Springs*, filed in El Paso County District Court, Case No. 2023CV031679 (“El Paso County Case”). *Id.* at ¶¶18-20; Dkt. 42, p.3 n.3.

In the instant case, Plaintiffs sue Philip J. Weiser, in his official capacity as Attorney General of Colorado, Jared S. Polis, in his official capacity as Governor of Colorado (Polis and Weiser are collectively the “State Defendants”), and the City of Colorado Springs. The State Defendants filed a Motion to Dismiss (“State MTD”) (Dkt. 42), to which Plaintiffs filed a response (Dkt. 43) and State Defendants filed a reply (Dkt. 46). The State MTD challenges this Court’s subject matter jurisdiction arguing Eleventh Amendment immunity applies, Plaintiffs lack standing, and their claims are not ripe. Dkt. 42, pp.5-13. They alternatively argue the Court should abstain under the *Pullman* and *Younger* abstention doctrines. Colorado Springs also filed a Motion to Dismiss (“CS MTD”) (Dkt. 41). Plaintiffs filed a response (Dkt. 44), and Colorado Springs filed a reply (Dkt. 45). The CS MTD challenges under Fed. R. Civ. P. 12(b)(1) this Court’s subject matter jurisdiction focusing on Plaintiffs’ alleged lack of standing and mootness.

Plaintiffs also filed a renewed Memorandum of Points and Authorities in Support of Motion for Preliminary Injunction and a Trial on the Merits Under Fed.

R. Civ. Proc. 65(a)(2) (“PI Motion”) (Dkt. 47). Colorado Springs filed a response (Dkt.59) as did the State Defendants (Dkt. 60). Plaintiffs filed a reply (Dkt. 61). The parties generally recycle their arguments from the MTDs and argue whether Plaintiffs met the standard for issuance of a preliminary injunction.

The Court has reviewed all the briefing, the docket, and the relevant law. No hearing is necessary. Plaintiffs allege the Court has jurisdiction under, *inter alia*, 28 U.S.C. § 1331. Dkt. 28-1, ¶12. As explained below, however, the Court finds it does not have subject matter jurisdiction. Thus, it grants both MTDs, denies the PI Motion as moot, and dismisses this case, without prejudice.

A. LEGAL PRINCIPLES

Federal courts, as courts of limited jurisdiction, must have a statutory basis for their jurisdiction. *See Morris v. City of Hobart*, 39 F.3d 1105, 1111 (10th Cir. 1994) (citing *Castaneda v. INS*, 23 F.3d 1576, 1580 (10th Cir. 1994)). Under Federal Rule of Civil Procedure 12(b)(1), the court may dismiss a complaint for lack of subject matter jurisdiction. The determination of a court’s subject matter jurisdiction is a question of law. *Madsen v. United States ex rel. U.S. Army, Corps of Eng’rs*, 841 F.2d 1011, 1012 (10th Cir. 1987). “A court lacking jurisdiction cannot render judgment but must dismiss the cause at any stage of the proceedings in which it becomes apparent that jurisdiction is lacking.” *Basso v. Utah Power & Light Co.*, 495 F.2d 906, 909 (10th Cir. 1974).

A motion to dismiss for lack of subject matter jurisdiction may take two forms.

See Holt v. United States, 46 F.3d 1000, 1002 (10th Cir. 1995). It may facially attack a complaint's allegations or it may challenge the facts upon which subject matter jurisdiction depends. *Id.* at 1002-1003. "The burden of establishing subject-matter jurisdiction is on the party asserting jurisdiction." *Montoya v. Chao*, 296 F.3d 952, 955 (10th Cir. 2002) (citing *Kokkonen v. Guardian Life Ins. Co. of Am.*, 511 U.S. 375, 377 (1994)). "The district court is given discretion in determining the procedure to employ in considering a motion to dismiss for lack of jurisdiction" *Fed. Deposit Ins. Corp. v. Oaklawn Apartments*, 959 F.2d 170, 174 (10th Cir. 1992) (quoting *Ten Mile Indus. Park v. Western Plains Serv. Corp.*, 810 F.2d 1518, 1524 (10th Cir. 1987)).

B. FACTUAL BACKGROUND

Because both MTDs make facial challenges to this Court's subject matter jurisdiction, the Court accepts as true the SAC's well-pleaded allegations for purposes of its analysis. Dkt. 42, p.4; *see also* Dkt. 41, pp.2-4. The Court may also take judicial notice of facts in the public record. *Lucero v. City of Aurora*, No. 23-cv-00851-SKC-SBP, 2025 WL 661639, at *3 (D. Colo. Feb. 28, 2025) (citation omitted).

Rule 106 of Colorado's civil procedure rules provides for judicial review of land use decisions rendered by local governments. Colo. R. Civ. P. 106(a)(4); *see also* Dkt. 28-1, ¶¶24-25. The One-Sided Fee Provision, signed into law May 30, 2024, alters the potential exposure citizens may have to an adverse award of attorney fees if they lose in a Rule 106 proceeding. *Id.* at ¶¶1-2. Plaintiffs claim the One-Sided Fee Provision has negatively affected them because of their perceived risk of incurring an

adverse fee award even if their cases have merit and are not frivolous. *Id.* at ¶¶7, 69.

All Plaintiffs previously filed a Rule 106 action in state court (in different counties) before the One-Sided Fee Provision took effect, and those actions were each in different stages as of the time the parties briefed this matter. *See, e.g., id.* at ¶54; Dkt. 43, p.4; Dkt. 46, p.9; Dkt. 44, p.5; Dkt. 41-3.

C. ANALYSIS

With careful consideration of the parties' respective arguments, the Court ultimately finds Eleventh Amendment immunity divests it of jurisdiction over the State Defendants. And mootness and lack of standing are bars to Plaintiffs' claims against Colorado Springs.

1. Eleventh Amendment Immunity

The Eleventh Amendment provides: "The Judicial power of the United States shall not be construed to extend to any suit in law or equity, commenced or prosecuted against one of the United States by Citizens of another State, or by Citizens or Subjects of any Foreign State." U.S. Const. amend. XI. It "declares a policy and sets forth an explicit limitation on federal jurisdictional power" *Sutton v. Utah State Sch. For Deaf & Blind*, 173 F.3d 1226, 1231 (10th Cir. 1999) (quoting *Ford Motor Co. v. Dep't of Treasury of Ind.*, 323 U.S. 459, 467 (1945)). The Eleventh Amendment "bars suits against states in federal court."² *Id.* at 1231-32 (citation omitted). And an official

² The Eleventh Amendment does not apply in state courts. *Hilton v. S.C. Pub. Rys. Comm'n*, 502 U.S. 197, 204-05 (1991) (quoting *Will v. Mich. Dept. of State Police*, 491

capacity claim against a government officer is considered a claim “against the government that employs that officer.” *See Strepka v. Miller*, 28 F. App’x 823, 828 (10th Cir. 2001). While this immunity is subject to exceptions, it is undisputed Colorado has not waived its Eleventh Amendment immunity. *See Griess v. Colorado*, 841 F.2d 1042, 1044-45 (10th Cir. 1988) (holding the Colorado Governmental Immunity Act, Colo. Rev. Stat. § 24-10-101, *et seq.*, does not waive the State’s Constitutional immunity).

Plaintiffs argue the *Ex parte Young* exception applies to allow this federal suit against the State Defendants to proceed. *See, e.g.*, Dkt. 47, pp.3-5. “Under the *Ex parte Young* exception, a plaintiff may sue individual state officers acting in their official capacities if the complaint alleges an ongoing violation of federal law and the plaintiff seeks only prospective relief.” *Hendrickson v. AFSCME Council 18*, 992 F.3d 950, 965 (10th Cir. 2021) (citing *Ex parte Young*, 209 U.S. 123, 159-160 (1908)). This requires, however, “that the state official ‘have a particular duty to “enforce” the statute in question and a demonstrated willingness to exercise that duty.’” *Id.* (quoting *Prairie Band Potawatomi Nation v. Wagnon*, 476 F.3d 818, 828 (10th Cir. 2007) (quoting *Ex parte Young*, 209 U.S. at 157)). A *general* duty to enforce the law does not satisfy the level of duty required for the *Ex parte Young* exception to apply. *Id.* (quoting 13 Charles Alan Wright & Arthur R. Miller, Federal Practice and

U.S. 58, 63-64 (1989)).

Procedure § 3524.3 (3d ed., Oct. 2020 update)).

While Plaintiffs argue they seek only prospective relief, *i.e.*, a ruling the One-Sided Fee Provision violates the Constitution, they fail to demonstrate either Polis or Weiser has anything beyond a general duty to enforce the law. They argue the governor “carries the ultimate authority to enforce all laws within Colorado.” Dkt. 43, p.13. But the cases they rely on don’t address Eleventh Amendment immunity and further look to state cases where the Amendment has no effect. *See Cooke v. Hickenlooper*, No. 13-CV-01300-MSK-MJW, 2013 WL 6384218, at *8 (D. Colo. Nov. 27, 2013), *aff’d* in part sub nom. *Colo. Outfitters Ass’n v. Hickenlooper*, 823 F.3d 537 (10th Cir. 2016) (citing *Developmental Pathways v. Ritter*, 178 P.3d 524, 529 (Colo. 2008)). Or they cite authority in which the state waived its Eleventh Amendment immunity. *See Rocky Mountain Gun Owners v. Polis*, No. 23-cv-01076-PAB-NRN, Dkt. 25, p.8 n.4 (D. Colo. Aug. 7, 2023) (Polis “waives his Eleventh Amendment immunity”); *cf. Miller v. Bonta*, 646 F. Supp. 3d 1218 (S.D. Cal. 2022) (California governor affirmatively intervened as a defendant and Eleventh Amendment immunity wasn’t raised).

Plaintiffs also cite *Wildgrass Oil & Gas Comm. v. Colorado*, 447 F. Supp. 3d 1051 (D. Colo. 2020), *aff’d*, 843 F. App’x 120 (10th Cir. 2021), for support that they can sue Polis here. But with due respect to that sister court, this Court disagrees with *Wildgrass Oil’s* reasoning. The district court in *Wildgrass Oil* relied on state cases to find the governor a proper party in federal court. *Id.* at 1061. But the Eleventh

Amendment has no effect in state court, so of course Colorado state courts find Polis a proper defendant there. *Hilton*, 502 U.S. at 204-05. Thus, *Wildgrass Oil* is not persuasive.

The Court instead finds decisive the fact the One-Sided Fee Provision makes a fee award mandatory on the Colorado courts. Colo. Rev. Stat. § 13-51.5-104. Polis has no direct authority to order fees under the statute. *Cf. Hendrickson*, 992 F.3d at 965 (state official must have particular duty to enforce and demonstrated willingness to exercise that duty). And because the State is not a party to a Rule 106 action—a local government is—the State is not the recipient of any attorney fees awarded under the challenged provision. *Cf. id.* at 964-66 (finding New Mexico governor and attorney general are not proper parties under *Ex parte Young* because a different state agency has enforcement responsibility).

The same holds true for Weiser. Plaintiffs point to Weiser’s general role as “legal counsel and adviser of each department, division, board, bureau, and agency of state government” Dkt.43, p.11 (quoting No. 80-70 Op. Att’y Gen. of Colo. (1980) (found at Dkt. 43-2)). But as with Polis, this authority is not specific enough. Indeed, Plaintiffs concede “Weiser does not ‘control’ the judicial branch;” they claim “his job is to ‘advise’ the judicial branch, including upon matters of constitutionality” and he “has the authority to write an opinion of the Attorney General stating that HB24-1107 is unconstitutional.” *Id.* But the fact Weiser might merely write an opinion that the One-Sided Fee Provision is unconstitutional, rather than direct a local

governmental unit or the Colorado judicial branch not to enforce it, itself concedes that Weiser is not the correct defendant here.

Under the circumstances before the Court, the Court finds Polis and Weiser each are entitled to Eleventh Amendment immunity, and thus, the Court lacks subject matter jurisdiction over Plaintiffs' claims against them.³ Having determined Eleventh Amendment immunity applies to the State Defendants, the Court does not address the State Defendants' other arguments.

2. Mootness and Standing Regarding Colorado Springs

The El Paso County Case is closed and Colorado Springs neither sought nor was awarded attorney fees from the El Paso County Plaintiffs. *See generally* Dkt. 41-3. And neither of the other Plaintiff groups filed a Rule 106 action against Colorado Springs. Thus, this Court finds the El Paso County Plaintiffs' claims are moot, and the Larimer and Jefferson County Plaintiffs do not have standing against Colorado Springs. The latter groups lack standing because there are no factual allegations establishing a case or controversy involving them and Colorado Springs or

³ This is not to say Plaintiffs have no redress. "[A]s we have stated on many occasions, 'the Eleventh Amendment does not apply in state courts.'" *Hilton*, 502 U.S. at 204-05 (quoting *Will*, 491 U.S. at 63-64); *see also Developmental Pathways*, 178 P.3d at 529; *Churchill v. Univ. of Colo. at Boulder*, 285 P.3d 986, 1005-06 (Colo. 2012) (addressing First Amendment rights in context of Rule 106 action); *Curious Theatre Co. v. Colo. Dep't of Pub. Health & Env't*, 220 P.3d 544, 545-46 (Colo. 2009) (addressing preliminary injunction arguing state statute violated plaintiffs' First Amendment rights).

establishing they suffered any actual or threatened injury from Colorado Springs.

Regarding the El Paso County Plaintiffs, the mootness doctrine is grounded in Article III's limitation on federal courts' subject matter jurisdiction. *See* U.S. Const. art. III, § 2, cl. 1. "Mootness is a threshold issue because the existence of a live case or controversy is a constitutional prerequisite to federal court jurisdiction." *McClendon v. City of Albuquerque*, 100 F.3d 863, 867 (10th Cir. 1996). "The mootness doctrine provides that although there may be an actual and justiciable controversy at the time the litigation is commenced, once that controversy ceases to exist, the federal court must dismiss the action for want of jurisdiction." *Jordan v. Sosa*, 654 F.3d 1012, 1023 (10th Cir. 2011) (citing 15 James W. Moore & Martin H. Redish, *Moore's Federal Practice* § 101.90, at 101–237 (3d ed. 2010)).⁴

Here, Colorado Springs prevailed in the El Paso County Case and never sought its attorney fees. Dkts. 41-3, -5.⁵ And the appeal period expired without anyone filing an appeal. *See id.* While the El Paso County Plaintiffs argue the uncertainty of the One-Sided Fee Provision resulted in their not appealing the case, the Court

⁴ Although the Court finds it inapplicable here, the Court notes the voluntary cessation exception to mootness prevents a defendant from automatically mooting a case simply by ending its unlawful conduct once sued. *Prison Legal News v. Fed. Bureau of Prisons*, 944 F.3d 868, 880 (10th Cir. 2019).

⁵ The parties disagree over whether the One-Sided Fee Provision applies prospectively or retrospectively and how it might apply to a case such as the El Paso County Case that was initiated prior to enactment of the One-Sided Fee Provision but which resolved after its enactment. These arguments have no bearing on the Court's rulings herein.

nevertheless finds their claims here are moot, thus depriving them of standing. Having found their claims moot, the Court does not decide their other arguments.

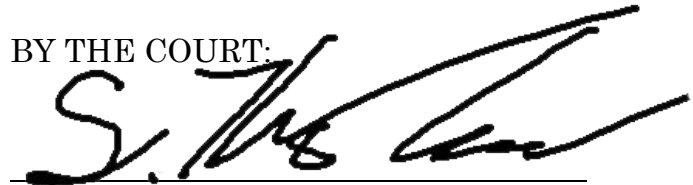
* * *

For the reasons shared above, the Court ORDERS:

- 1) The State MTD (Dkt. 42) is GRANTED;
- 2) The CS MTD (Dkt. 41) is GRANTED;
- 3) The PI Motion (Dkt. 47) is DENIED as moot;
- 4) This matter is DISMISSED WITHOUT PREJUDICE for lack of subject matter jurisdiction;⁶ and
- 5) The Clerk of Court shall terminate this action.

DATED: September 30, 2025.

BY THE COURT:

A handwritten signature in black ink, appearing to read 'S. Kato Crews', written over a horizontal line.

S. Kato Crews
United States District Judge

⁶ Under Colo. Rev. Stat. § 13-80-111(1), if claims are properly commenced within the statute of limitations and involuntarily dismissed because of lack of jurisdiction, the plaintiff “may commence a new action upon the same cause of action within ninety days after the termination of the original action or within the period otherwise allowed by this article, whichever is later.” *See also Artis v. D.C.*, 583 U.S. 71, 74-75 (2018) (holding that 28 U.S.C. § 1367(d) tolls the statute of limitations for state law claims asserted under § 1367(a) during the pendency of the federal litigation in which such claims are brought and for thirty days following involuntary dismissal of those claims on jurisdictional grounds).